IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-III

Item No.101
CA.(CAA)-5/ND/2023

IN THE MATTER OF:
M/s. Spack Automotives Pvt Ltd. AND Gatorcorp Automotive Pvt Ltd.
.... APPLICANT/PETITIONER

SECTION
U/s 230-232 **Order delivered on 31.01.2023**

CORAM:
SHRI ATUL CHATURVEDI **SHRI BACHU VENKAT BALARAM DAS**
MEMBER (TECHNICAL) **MEMBER (JUDICIAL)**

PRESENT:
For the Applicant : Mr. Divyan Aggarwal, Mr. Aniket Aggarwal, Mr. Shiv Singhal, Mr. Kumar Rishabh Parth, Advocates
For the Respondent :

ORDER

This is a Joint Application filed by the Applicant No. 1/ Demerged Company and the Applicant No. 2/ Resulting Company (collectively, "Applicants" or the "Applicant Companies") under Sections 230 to 232 of the Companies Act, 2013.

Considering the fact that the Applicant has filed large number of affidavits/documents in support of its application, we deem it appropriate to appoint a Court Commissioner to verify the documents and submit a report. We requested Ms. Shraddha Deshmukh, Ld. Advocate who is present in the Court to undertake the assignment who agreed to verify the documents and submit a report thereof. We, therefore appoint Ms. Shraddha Deshmukh, Ld. Advocate as Court Commissioner and request her to submit a report within two weeks after verifying the documents. Ld. Counsel for the Applicant is requested to provide all documents including the copy of the petition to Ms. Shraddha Deshmukh within two days.

We make it clear that the remuneration (including fees and expenses) of the Court Commissioner conducting the said exercise is fixed at Rs. 50,000/- and the Applicant shall bear the same.

List on **16.02.2023.**

Sd/-

(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

Sd/-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

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Mamta 31.01.2023